

25NWCV04280 25NWCV04280

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-27

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SE%20%2CD%2C08%2F27%2F2026

Source SHA-256: e8e11e8550af6ee41335abd6f38364014011990983f60ea7540176e56b521fc4

Case Number: 25NWCV04280 Hearing Date: August 27, 2026 Dept: D

GONZALEZ v. PEREZ

CASE NO.: 25NWCV04280

HEARING: 08/27/2026 @ 9:30 a.m.

#3

TENTATIVE ORDER

The Court GRANTS Defendant Maria Perez's motion to set aside default entered against her.

The Court orders the default entered on February 25, 2026 as to Defendant Maria Perez VACATED.

Defendant Maria Perez is ordered to file the proposed pleadings within 14 days of the Court's order.

Moving party to give notice.

Defendant Maria Perez moves to set aside the default entered against her.

Background

On December 4, 2025, Plaintiff Eric Gonzalez ("Plaintiff") filed a complaint against Defendant Maria Perez ("Defendant") alleging causes of action for (1) landlord harassment (Civil Code § 1940.2), (2) retaliation (Civil Code § 1942.5), (2) illegal entry (Civil Code § 1954), (4) invasion of privacy, (5) abuse of process, and (6) declaratory relief.

Plaintiff served Defendant by personal service on December 4, 2025. On February 25, 2026, the Court entered default against Defendant.

Legal Standard

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." (Code Civ. Proc., § 473, subd. (b).)

Request for Judicial Notice

Plaintiff requests judicial notice of the following documents related to Defendant's third-grade education, Defendant's objection by Defendants and Cross-Complainants to Trial Court's Tentative Decision filed in LASC Case no. 21NWCV00448 and Defendant's Appellants Opening Brief filed in California Court of Appeal Case no. B347114. The Court takes judicial notice of these documents pursuant to Evidence Code section 452 subdivision (d).

Analysis

Defendant moves to set aside the default entered against her on February 25, 2026.

"While section 473 is remedial and should be liberally construed, nevertheless the moving party has the burden of showing that the default was entered through 'mistake, inadvertence, surprise or excusable neglect' (§ 473), which he must establish by a preponderance of the evidence . . . ; in the absence of such showing the default may not be set aside." (Goodson v. Bogerts, Inc. (1967) 252 Cal.App.2d 32, 38.) "The inadvertence contemplated by the statute does not mean mere inadvertence in the abstract. If it is wholly inexcusable it does not justify relief." (Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206.)

Defendant argues that because Plaintiff filed the instant action while an unlawful detainer action she filed against Plaintiff on September 5, 2025, was ongoing, she took no action to respond to the Complaint because she mistakenly thought the Complaint pertained to the UD action. Defendant argues that she also mistakenly believed that her counsel for the UD action would deal with the Complaint. Defendant argues that as a result of her mistaken assumption, a default was entered against her on February 25, 2026.

The Court finds that Defendant's inadvertence is excusable because she believed the Complaint filed on her was part of the ongoing UD action with the same parties and that her attorney Carlos D. Vinoly had also received a copy of the Complaint and he would be dealing with it. (Declaration of Maria Perez ("Perez Decl."), ¶ 7.) Additionally, she did not become aware of this action being a separate action until she received the Request for Entry of Default and she asked her daughter about it, who informed her that Plaintiff had filed a separate lawsuit and was not a part of the UD action. (Perez Decl., ¶ 8.) Defendant also explains that her misunderstanding was due to her third-grade education, the fact that she reads, speaks, and writes in Spanish as her primary language, and she finds it difficult reading, speaking, and writing in English, particularly legal documents written in English. (Perez Decl., ¶ 2.)

Furthermore, as soon as she discovered her mistake, Defendant obtained counsel to represent her in this matter and filed the instant motion. (Perez Decl., ¶¶ 9-10; Declaration of Aaron B. Fairchild, ¶¶ 2-3.) "It is the duty of every party desiring to resist an action or to participate in a judicial proceeding to take timely and adequate steps to retain counsel or to act in his own person to avoid an undesirable judgment. Unless in arranging for his defense he shows that he has exercised such reasonable diligence as a man of ordinary prudence usually bestows upon important business his motion for relief under section 473 will be denied." (Hearn, supra, 177 Cal.App.4th at p. 1206.) Defendant has shown that she exercised reasonable diligence in retaining counsel and seeking to defend herself in this action as soon as she became aware that this was a separate action.

Plaintiff argues that Defendant has not shown that Defendant gave Carlos D. Vinoly the Complaint. However, Defendant states that she believed Mr. Vinoly had also received a copy of the Complaint and that she received a courtesy copy. (Perez Decl., ¶ 7.)

Plaintiff also argues that on January 8, 2026, Defendant was personally served with Plaintiff's Statement of Damages and Defendant does not identify any effort she made upon receiving this additional document to seek assistance from Mr. Vinoly or her daughter. However, this is not sufficient to show that Defendant's mistake or inadvertence was not reasonable or justifiable and that Defendant did not exercise reasonable diligence because the Statement of Damages also regards the same parties and, as Defendant argues in the reply, there is nothing that suggests Defendant would have understood the Statement of Damages arose from this separate action rather than the UD action and that the separate action required a response from her personally.

Accordingly, the court grants Defendant's motion to set aside default.

Conclusion

The Court GRANTS Defendant Maria Perez's motion to set aside default entered against her.

The Court orders the default entered on February 25, 2026 as to Defendant Maria Perez VACATED.

Defendant Maria Perez is ordered to file the proposed pleadings within 14 days of the Court's order.